

K/7595

KERRIER DISTRICT COUNCIL

MEMORANDUM

KERRIER DISTRICT COUNCIL	
CHIEF EXECUTIVE	
25 FEB 1998	
RE	
ATTN	LLC
OFFICE	

To: Local Land Charges Section

Ref:

Copies to:

Date: 24th February, 1998.

From: Assistant Chief Executive Officer

Ref:

Subject: Planning Obligation made under the Town and Country Planning Act, 1990,
as amended: Land at Vicarage Road, Porthleven: D.E. and P.F. Johns.

I now have pleasure in enclosing herewith a photocopy of the completed Obligation relating to the above matter which you will note is dated the 20th February, 1998. I shall be pleased if, once you have had an opportunity to consider the contents of the same, you will make the usual entry in your Register of Local Land Charges.

.....
For and on behalf of
Assistant Chief Executive Officer

6300 2620

25/2/98.

K/7595

DATED

20th February,

1998

KERRIER DISTRICT COUNCIL (1)

DAVID EDWARD JOHNS and PETER FREDERICK JOHNS (2)

PLANNING OBLIGATION

under Section 106, Town and Country Planning Act, 1990, as amended
for development at Vicarage Road, Porthleven, Helston in the County
of Cornwall

Council Offices
Camborne, TR14 8SX

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Council Offices
Camborne, TR14 8SX

6300 2620

25/2/98.

THIS DEED is made the 20th day of February

One thousand nine hundred and ninety-eight BETWEEN:- KERRIER DISTRICT COUNCIL of Council Offices Camborne in the County of Cornwall (hereinafter called "the Council") of the first part DAVID EDWARD JOHNS of 1 Hammills Drive Porthleven Helston aforesaid and PETER FREDERICK JOHNS of 8 St. Pirans Park Porthleven Helston (hereinafter called "the Owners") of the other part

WHEREAS:-

- (1) The Council is the Local Planning Authority for the purpose of the Town and Country Planning act 1990, as amended, for the area within which the property described in the First Schedule hereto (hereinafter referred to as "the development land") is situated
- (2) The Owners are the joint owners of the development land registered at H.M. Land Registry with title absolute No. CL 102812
- (3) Porthleven Construction Limited has by a written application dated the 6th day of April 1995 applied to the Council for the approval of matters reserved pursuant to the grant of planning permission dated 3rd November 1992 on the development land (hereinafter referred to as "the Development") brief particulars of such development being set out in the Second Schedule hereto in the manner and for the uses set out in the said application and the plans specifications and particulars deposited therewith and any plans specifications and particulars which may subsequently be or have been deposited with the Council in connection with the said application
- (4) The Council is satisfied that the Development disclosed by the said Plans Specifications and Particulars is such as may be approved by the Council under the said Act subject to conditions
- (5) This instrument is intended and shall be accepted as a Deed for all or

any purposes so required by Section 1 of the Law of Property (Miscellaneous Provisions) Act 1989

NOW THIS DEED WITNESSETH as follows:-

1. THIS Obligation is made in pursuance of Section 106 of the Town and Country Planning Act 1990 Section 111 of the Local Government Act 1972 and any enactments amending replacing or superseding the same and in consideration of the covenants on the part of the Owners hereinafter contained and is a Planning Obligation for the purposes of Section 12 of the Planning and Compensation Act 1991 enforceable by the Council
2. THIS Deed shall not operate as a grant of Planning Permission or approval of reserved matters
3. THE Owners hereby covenant with the Council that the development land shall with the object and intent of binding the development land in perpetuity into whosoever hands the same may come be permanently subject to the stipulations and provisions restricting or regulating the Development and the use of the development land specified in the Third Schedule hereto
4. THE Owners hereby agree to carry out the Development in strict conformity with the said Plans Specifications and Particulars and to develop and use the development land and all buildings erected or to be erected thereon in strict accordance with this Obligation and not otherwise
5. NOTWITHSTANDING anything contained in this Obligation the provisions of this Obligation shall not take effect until the reserved matters have been approved by the Council for the Planning Application set out in the Second Schedule hereto and if any such approval is revoked or expires by effluxion of time this Obligation shall cease to have any effect providing always that no development within the meaning of Sections 55 and 56 of the Town and Country Planning Act 1990 has begun

0558
1-301ha
3-22

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civil proceedings

30-4-4
1-378
3-41

2434
396ha
-92

629

630

Porthleven

631

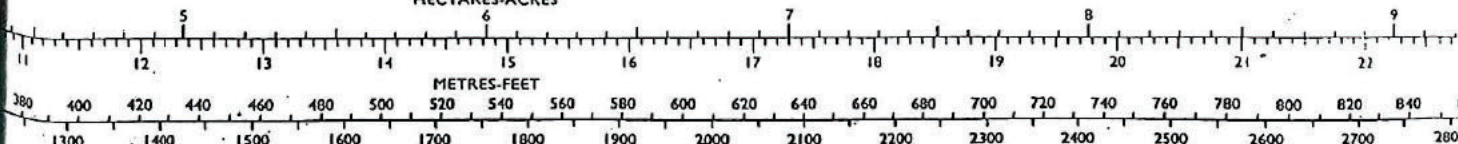
Wellington Place 632

633

SW 6225-6325

CONVERSION SCALES
HECTARES-ACRES

LOCATION PLAN



SYMBOLS

6. THE provisions of this clause shall have effect if the Owners are more than one person or is a Limited Company or other incorporated body but not otherwise:-

- (a) The singular includes the plural and vice versa;
- (b) Covenants by the Owners are joint and several;

7. THE expressions "the Council" and "the Owners" shall include their respective successors in title and assigns

IN WITNESS whereof the Parties to these presents have hereunto set their hands or caused their Common Seals to be hereunto affixed as their Deed the day and year first before written

THE FIRST SCHEDULE before referred to

(Description of the development land)

ALL THAT piece or parcel of land situate at Porthleven, Helston Cornwall TOGETHER with the building or buildings erected or to be erected thereon or on part thereof and known as Land at Vicarage Road, Porthleven, Helston, Cornwall which is shown for the purpose of identification only edged red on the plan (hereinafter referred to as "the Plan") attached hereto

THE SECOND SCHEDULE before referred to

(Details of the Development and of the Plans, Specifications and Particulars deposited with the Planning Application)

Application No.

Date

Particulars of Development

PA92/00570/S01
and the plans
specifications and
particulars (if any)
accompanying it

6th April 1995

Erection of sixteen dwellings
and domestic garages with
associated access road

THE THIRD SCHEDULE before referred to

(Stipulations and Provisions)

1. ON the commencement of the laying out of the public open spaces and play areas referred to in Paragraph 2 of this Schedule the Owners shall pay to the Council such sum on account of future maintenance costs of the public open spaces and play areas hereinafter referred to as may be specified by the Council's Chief Services officer (hereinafter referred to as the "Chief Services Officer").
2. WITHIN a period of six months from the substantial completion of seventy-five (75) per cent of the dwellings the Owners shall lay out the area shown coloured green on the plan being of not less than 0.097 hectares (0.248 acres) in total within the development land as public open spaces and play areas with an adequate means of public access and in accordance with the Council's Standard Specification for amenity areas on private residential estates (a copy of which is set out in the Fifth Schedule hereto) and all to the satisfaction of the Council's Chief Services Officer and shall thereafter dedicate the same to the Council for use as public open spaces and play areas whereupon the Council will take over all future liability to maintain the same.
3. THE Owners shall provide to the Council and to the satisfaction of the Chief Services Officer access to the said public open spaces and play areas (hereinafter referred to as "public open spaces") so as to enable the Council to enter upon the public open spaces for the purposes of mowing and otherwise maintaining the public open spaces and shall if called upon so to do enter into any necessary Deeds of Grant of Easement.
4. SUBJECT TO the provisions of Paragraph 1, 2 and 3 of this Schedule the Owners at their own expense when requested by the Council shall convey all

the public open spaces for the consideration of a peppercorn to the Council or to such other appropriate authority or body as the Council and the Owners shall agree to nominate or in default of agreement as the Council shall nominate

5. THE Development shall only be served by way of septic tank drainage and shall not be connected to the main sewerage system serving the Helston Area until such time that prior written permission is obtained from the Council such permission being granted subsequent to the confirmation by South West Water Services Plc. (hereinafter referred to as "the Company") and the Environment Agency (or any subsequent authorised body) that the said main sewerage system has been improved so as to be able to accept the additional drainage from the Development whereupon the Owners shall at its own expense connect the Development to the improved main sewerage system within 3 months of obtaining the aforementioned written permission such permission being granted at the absolute discretion of the Council PROVIDED ALWAYS that the Owners shall be solely responsible for costs of the maintenance upkeep and renewal of the septic tank drainage system and for the cost of restoring the land surface in the event of damage caused by the upkeep or renewal of the septic tank until connection to the improved main sewerage system and shall indemnify the Council against any and all actions claims demand and liability in respect of such costs

6.(a) BEFORE commencement of the Development a Bond from a Surety approved by the Council shall be provided in the sum of £5,500 index linked from the 5th of April 1997 in the form and terms as specified in the Fourth Schedule hereto to secure the performance of the covenant ("the Covenant") of the Owner specified in Paragraph 2 of the Third Schedule hereof

6.(b) IN the event that the Covenant is not complied with then the Council without prejudice to any other right remedy or right of action including the calling

in of the said Bond shall be entitled to enter upon the development land with or without workmen contractors agents plant and equipment for the purpose of and to carry out such works as shall be necessary to remedy such default

THE FOURTH SCHEDULE before referred to

THE BOND

KNOW ALLMEN BY THESE PRESENTS that David Edward Johns of 1 Hammills Drive Porthleven Helston Cornwall and Peter Frederick Johns of 8 St. Pirans Park Porthleven Helston Cornwall (hereinafter called "the Owners") and Barclays Bank Plc whose Registered Office is situate at 54 Lombard Street London EC3P 3AH (hereinafter called "the Surety") are held and firmly bound unto Kerrier District Council (hereinafter called "the Council") in the sum of FIVE THOUSAND FIVE HUNDRED POUNDS indexed to the Retail Price Index as calculated and defined in clause 4 hereof ("the Bonded Sum") the payment of which sum the Owners binds itself and its successors and assigns and the Surety binds itself and its successors and assigns jointly and severally by these presents ("the Agreement")

Sealed with the Common Seals of the respective parties this day
of
1997

WHEREAS

1. The Owners propose to develop land at Vicarage Road, Porthleven, Cornwall ("the Development")
2. The Owners are desirous of commencing the Development and in pursuance of a Planning Obligation ("the Obligation") dated 1997 and made between the Council (1) and the

Owners before the Development can be commenced a Bond from a Surety approved by the Council must be provided in the terms hereof to secure the performance of the Covenant (the "Covenant") on the part of the Owners at Paragraph 2 of the Third Schedule of the Obligation

3. Now Therefore The Conditions of this Bond are that

3.1. If the Owners shall fully comply with the Covenant on the part of the Owners as defined in the Obligation then this Agreement shall be null and void but otherwise shall be and remain in full force and effect

3.2. In the event of any default in the performance of the Covenant then the Surety shall pay to the Council forthwith on demand in writing the sum calculated in accordance with Clause 4 hereof

4.1. In this clause the following definitions shall have the respective meanings set out opposite them:-

4.1.1. "Payment Date" The date on which the payment is due to the Council pursuant to Clause 3.2 hereof

4.1.2. "Base Figure" such figure as shall be the figure for the Index as at 1st 5th April 1997

4.1.3. "Index" Index of Retail Prices (All Items) published by the Department of Employment or any successor Ministry or Department

4.1.4. "Index Figure" The amount of the Index for the month preceding the Payment Date

4.1.5. The "Initial Sum" Five thousand five hundred pounds (£5500)

4.2. The Bonded Sum payable by the Surety to the Council on the Payment

Date shall be the amount which bears the same proportion to the Initial Sum as the Index Figure bears to the Base Figure. The Owners undertake to advise the Surety in writing, countersigned by the Council, to the address shown in Clause 3.2 above on the first and subsequent anniversaries of this Bond of the amount of the Surety's liability as at the date of each anniversary of this Bond PROVIDED THAT any default on the part of the Owners in complying with this undertaking shall not in any way whatsoever affect the validity of this Bond and in particular the liability of the Surety in relation to the Covenant

4.3. If the reference base used to compile the Index shall change after the date hereof the figure taken to be shown on the Index after the change shall be the figure which would have been shown in the Index if the reference base current at the date hereof had been retained

4.4. Provided Always that if any part of any sum or sums due under this Bond shall not be paid to the Council within 14 days after the Payment Date then the Surety is to pay on demand to the Council interest thereon at a rate equal to 4% above the Base Rate from time to time of Barclays Bank Plc such interest to be calculated daily from the Payment Date until the date such monies are received by the Council (both dates inclusive)

5. The Surety's liability shall expire on the date of completion of the development or upon the date the fulfilment of the covenant concerning the laying out of a public open space (whichever is the earlier) and all claims hereunder shall have been received by whichever is the earlier of those two dates

(To be executed as a Deed by the parties)

THE FIFTH SCHEDULE

(Standard Specification for Amenity Areas on Private Estates)

FINISH OF VERGES ETC.

The formation for verges shall be shaped and graded, gradients not to exceed 1 in 4. The verges shall be covered with good top soil average depth 4" with a minimum of 3" thoroughly cleared of all stones and brought to a fine tilth sown with grass seed certified to be to the following mixture:-

10% Agrostis tenuis	5% Smooth stalked meadow grass
25% Chewings Fescue	10% S.23 Ryegrass
10% Hard Fescue	20% Short seeded perennial Ryegrass
20% Creeping Red Fescue	

This seed to be sown evenly at not less than one and a quarter oz./sq. yard. The grass to be cut and maintained for at least 12 months after germination including making good any settlement and/or re-seeding from whatever cause.

All grass areas to be finished to even falls, ground level to half an inch above kerbs and footpath edgings, manhole covers etc.

Against all buildings and fences, concrete strips at least six inches wide, half an inch below ground level are to be provided to facilitate grass cutting. Grass widths to be not less than 2'6" wide at any point and shall be finished square.

All trees to be of varieties agreed with the Chief Services Officer, to be well rooted, properly planted, staked and tied. The said trees are to be sited so that a 7'6" wide mowing machine can pass all round without striking buildings or lamp posts.

SHRUBBERIES AND LIVE HEDGES

Shrubberies shall have a depth of 1" of good topsoil, cleared of all perennial weeds before shrubs are planted. Varieties and layout of the massed

shrubberies are to be agreed by the Chief Services Officer in writing. The shrubs are to be properly planted and fertilised, sited in accordance with approved detailed plans, well grown and true to varieties specified. The shrubberies to be kept regularly hoed and clear of weeds for at least 12 months, including making good and/or replacing from whatever cause.

PLAYGROUND

Play areas which are large enough to kick a ball about are to be fenced nine feet high.

If a Cornish hedge already bounds the site a chain link fence may be permitted to be erected on top to give a total height of 9'. The fence to be plastic coated galvanised chain link. $12^{1/2}/9^{1/2}$ g, 2" mesh with three matching line wires $10^{1/2}/8^{1/2}$ g. The whole to be erected on galvanised angle iron supports as follows:-

Intermediate standards 2" x 2" x $1^{1/4}$ " x 11'6" long; terminal straining pillars and gate pillars $7^{1/2}$ " x $2^{1/2}$ " x $5/16$ " x 11'6" long, with one matching stay, fitted with base/thrust plates, strainers, stretcher bar, bolts etc. set in concrete; corner and two-way straining pillars all as last but with two stays.

Straining pillars are not to exceed 75 yds. apart. Corner pillars shall be used at all changes of direction exceeding 30°.

Intermediate standards to be 9' crs. maximum.

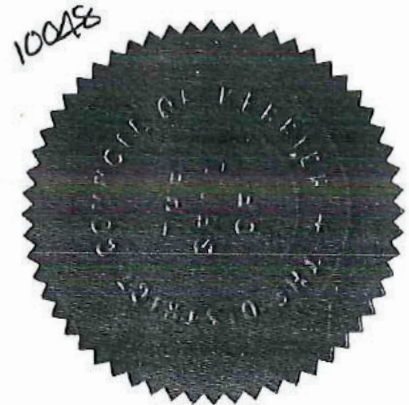
Fencing on Cornish hedges shall only be permitted if the hedge is sound and will not require undue lopping of trees. Such permission must be in writing obtained from the Chief Services Officer.

Play areas shall be graded to even falls n.e. 1:15 with banks n.e. 1:4 and if such work would reduce the thickness of topsoil to 4" or less, the site shall first be stripped of topsoil, the subsoil regraded, drained as necessary to satisfy the Chief Services Officer and topsoil respread to a minimum of 6" thickness. Chemical

and mechanical analysis of the soil may be required to establish the treatment necessary to encourage a sward on free draining topsoil.

After any such treatment, a fine tilth should be prepared, fertilised as required, and sown with grass seed as for verges.

THE COMMON SEAL of KERRIER
DISTRICT COUNCIL was hereunto
affixed in the presence of:-



Authorised Officer

SIGNED and DELIVERED as a DEED
by DAVID EDWARD JOHNS
in the presence of:-

Witness:

Address:

Occupation:

SIGNED and DELIVERED as a DEED
by PETER FREDERICK JOHNS
in the presence of:-

Witness:

Address:

Occupation: